

Section 185. (Repeal and saving): --- (1) Save as otherwise provided in this Act, the Indian Electricity Act, 1910, the Electricity (Supply) Act, 1948 and the Electricity Regulatory Commissions Act, 1998 are hereby repealed.

(2) Notwithstanding such repeal, -

- (a) anything done or any action taken or purported to have been done or taken including any rule, notification, inspection, order or notice made or issued or any appointment, confirmation or declaration made or any licence, permission, authorisation or exemption granted or any document or instrument executed or any direction given under the repealed laws shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act.
- (b) the provisions contained in sections 12 to 18 of the Indian Electricity Act, 1910 and rules made thereunder shall have effect until the rules under section 67 to 69 of this Act are made;
- (c) the Indian Electricity Rules, 1956 made under section 37 of the Indian Electricity Act, 1910 as it stood before such repeal shall continue to be in force till the regulations under section 53 of this Act are made.
- (d) all rules made under sub-section (1) of section 69 of the Electricity (Supply) Act, 1948 shall continue to have effect until such rules are rescinded or modified, as the case may be;
- (e) all directives issued, before the commencement of this Act, by a State Government under the enactments specified in the Schedule shall

continue to apply for the period for which such directions were issued by the State Government.

- (3) The provisions of the enactments specified in the Schedule, not inconsistent with the provisions of this Act, shall apply to the States in which such enactments are applicable.
- (4) The Central Government may, as and when considered necessary, by notification, amend the Schedule.
- (5) Save as otherwise provided in sub-section (2), the mention of particular matters in that section, shall not be held to prejudice or affect the general application of section 6 of the General Clauses Act, 1897, with regard to the effect of repeals.

THE SCHEDULE.

ENACTMENTS

[See sub-section (3) of section 185]

The schedule to this Act mentions the State Reforms Acts. Originally 8 enactments were incorporated:

- 1. The Orissa Electricity Reform Act, 1995 (Orissa Act No. 2 of 1996)
- 2. The Haryana Electricity Reform Act, 1997 (Haryana Act No. 10 of 1998)
- 3. The Andhra Pradesh Electricity Reform Act, 1998 (Andhra Pradesh Act No. 30 of 1998)
- 4. The Uttar Pradesh Electricity Reform Act, 1999 (Uttar Pradesh Act No. 24 of 1999)
- 5. The Karnataka Electricity Reform Act, 1999 (Karnataka Act No. 25 of 1999)
- 6. The Rajasthan Electricity Reform Act, 1999 (Rajasthan Act No. 23 of 1999)
- 7. The Delhi Electricity Reforms Act, 2000 (Delhi Act No.2 of 2001)
- 8. The Madhya Pradesh Vidyut Sudhar Adhiniyam, 2000 (Madhya Pradesh Act No. 4 of 2001)

